

SENATE BILL 113

By Johnson

AN ACT to amend Tennessee Code Annotated, Title 68,
Chapter 221, Part 4, relative to variances for
subsurface sewage disposal systems.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 68-221-403(a)(10), is amended by adding the following as a new subdivision:

() The commissioner may issue a variance within the covered area or jurisdiction under § 68-221-410, which shall supersede any more stringent local requirements;

SECTION 2. Tennessee Code Annotated, Section 68-221-410(a), is amended by adding the following new subdivision:

() The commissioner may require a variance granted under this section to be filed and recorded with the county register of deeds with respect to the property subject to the variance.

SECTION 3. This act takes effect upon becoming law, the public welfare requiring it.